

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index #
Date of filing:

-----X
KITO PENN,

Plaintiff designates Kings
County as the place of trial

Plaintiff,

Basis of the venue is Locus of
Occurrence

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
FERMIN, POLICE OFFICER HUDSON, POLICE
OFFICER CANADY and JOHN DOES – Police Officers
as yet unidentified,

SUMMONS

Plaintiff resides at
798 Halsey Street
Brooklyn, NY 11233

Defendants.

County of Kings

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded

Defendants

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10007

POLICE OFFICER FERMIN – Tax Id # 958582
81st Precinct
30 Ralph Avenue
Brooklyn, NY 11221

POLICE OFFICER HUDSON - 81st Precinct
30 Ralph Avenue
Brooklyn, NY 11221

POLICE OFFICER CANADY - 81st Precinct
30 Ralph Avenue
Brooklyn, NY 11221

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
KITO PENN,

Index No.:

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
FERMIN, POLICE OFFICER HUDSON, POLICE
OFFICER CANADY and JOHN DOES – Police Officers
as yet unidentified,

Defendants.

-----X

Plaintiff, KITO PENN, by his attorneys, RUBENSTEIN & RYNECKI, ESQS,,
complaining of the defendants herein, upon information and belief, respectfully shows to this
Court, and alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF KITO PENN**

1. That at all times hereinafter mentioned, plaintiff was and still is a resident
of the County of Kings, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK,
was and still is a municipal corporation, duly organized and existing pursuant to the laws of the
State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known
as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on June 28, 2016, and within the time prescribed by law, a
sworn Notice of Claim stating, among other things, the time when and place where the injuries
and damages were sustained, together with plaintiff's demands for adjustment or payment

thereof was served, and that thereafter the CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That on September 16, 2016, pursuant to the General Municipal Law, a Statutory 50-H hearing was held.

6. That on May 2, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed POLICE OFFICER FERMIN, as agent, servant and/or employee.

7. That on May 2, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed POLICE OFFICER HUDSON, as agent, servant and/or employee.

8. That on May 2, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed POLICE OFFICER CANADY, as agent, servant and/or employee.

9. That on May 2, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed JOHN DOES – Police Officers as yet unidentified as agents, servants, and/or employees.

10. That on May 2, 2016, and at all times hereinafter mentioned and upon information and belief, the plaintiff, KITO PENN, was lawfully present at or near the premises known as 802 Halsey Street, County of Kings, City and State of New York.

11. That on May 2, 2016, and at all times hereinafter mentioned and upon information and belief, the plaintiff, KITO PENN, was assaulted and battered by POLICE OFFICER FERMIN, who was acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

12. That on May 2, 2016, and at all times hereinafter mentioned and upon information and belief, the plaintiff, KITO PENN, was assaulted and battered by POLICE OFFICER HUDSON, who was acting within the scope of his employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

13. That on May 2, 2016, and at all times hereinafter mentioned and upon information and belief, the plaintiff, KITO PENN, was assaulted and battered by POLICE OFFICER CANADY, who was acting within the scope of his employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

14. That on May 2, 2016, and at all times hereinafter mentioned and upon information and belief, the plaintiff, KITO PENN, was assaulted and battered by JOHN DOES- police officers as yet unidentified, who were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

15. That on May 2, 2016, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

16. That on May 2, 2016, and at all times hereinafter mentioned and upon information and belief the defendants, POLICE OFFICER FERMIN, POLICE OFFICER HUDSON, POLICE OFFICER CANADY and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, KITO PENN,

were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

17. That on May 2, 2014, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

18. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

19. By the reason of the foregoing, the plaintiff, KITO PENN, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION
FOR NEGLIGENT HIRING AND RETENTION ON BEHALF OF KITO PENN**

20. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "19" inclusive with the same force and effect as if more fully set forth at length herein.

21. Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER FERMIN, who assaulted, battered and violated the civil rights of the plaintiff, KITO PENN.

22. Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring,

training and retention of the defendant, POLICE OFFICER HUDSON, who assaulted, battered and violated the civil rights of the plaintiff, KITO PENN.

23. Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendant, POLICE OFFICER CANADY, who assaulted, battered and violated the civil rights of the plaintiff, KITO PENN.

24. Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, Employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, JOHN DOES – Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, KITO PENN.

25. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and Improper conduct of the defendants, POLICE OFFICER FERMIN, POLICE OFFICER HUDSON, POLICE OFFICER CANADY and JOHN DOES- Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

26. By the reason of the foregoing, the plaintiff, KITO PENN, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF KITO PENN**

27. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "26" inclusive with the same force and effect as if more fully set forth at length herein.

28. That on May 2, 2016, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER FERMIN, POLICE OFFICER HUDSON, POLICE OFFICER CANADY and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, when they arrested and confined the plaintiff, KITO PENN.

29. That on May 2, 2016, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

30. That as a result of the aforesaid false arrest and confinement, plaintiff, KITO PENN, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

31. By the reason of the foregoing, the plaintiff, KITO PENN, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF KITO PENN**

32. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "31" inclusive with the same force and effect as if more fully set forth at length herein.

33. That on May 2, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER FERMIN, POLICE OFFICER HUDSON, POLICE OFFICER CANADY and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

34. That defendants, POLICE OFFICER FERMIN, POLICE OFFICER HUDSON, POLICE OFFICER CANADY and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

35. By the reason of the foregoing, the plaintiff, KITO PENN, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF KITO PENN**

36. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "35" inclusive with the same force and effect as if more fully set forth at length herein.

37. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER FERMIN, POLICE OFFICER HUDSON, POLICE OFFICER CANADY and JOHN DOES-Police Officers as yet unidentified, were acting under the color of law and within the scope of their authority, arrested, imprisoned, assaulted and battered the plaintiff, KITO PENN, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

38. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER FERMIN, POLICE OFFICER HUDSON, POLICE OFFICER CANADY and JOHN DOES-Police Officers as yet unidentified, acting under color of law and within the scope of their authority, deprived the plaintiff, KITO PENN, of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

39. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

40. That the assault and battery was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

41. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER FERMIN, POLICE OFFICER HUDSON, POLICE OFFICER CANADY and JOHN DOES-Police Officers as yet unidentified, acting under color of law and within their authority as law enforcement officers within the employ of defendants, THE NEW YORK CITY POLICE DEPARTMENT.

42. That the defendants' actions were not privileged or immune.

43. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER FERMIN, POLICE OFFICER HUDSON, POLICE OFFICER CANADY and JOHN DOES-Police Officers as yet unidentified, were not acting with immunity when they deprived plaintiff of his civil rights.

44. By the reason of the foregoing, the plaintiff, KITO PENN, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN SIXTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF KITO PENN**

45. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "44" inclusive with the same force and effect as if more fully set forth at length herein.

46. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

47. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to defendants POLICE OFFICER FERMIN, POLICE OFFICER HUDSON, POLICE OFFICER CANADY and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

48. By the reason of the foregoing, the plaintiff, KITO PENN, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, KITO PENN, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, KITO PENN, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, KITO PENN, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, KITO PENN, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, KITO PENN, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, KITO PENN, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower

Courts on the **Sixth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
January 27, 2017

Yours, etc.,


SCOTT RYNECKI, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiff
KITO PENN
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020

VERIFICATION

STATE OF NEW YORK, COUNTY OF KINGS ss:

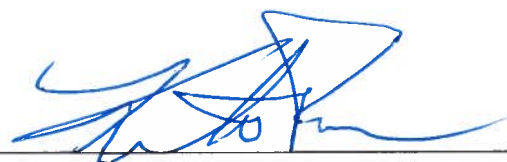
KITO PENN, being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed

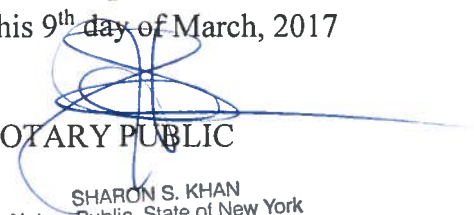
COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

Dated: Brooklyn, New York
March 9, 2017


KITO PENN

Subscribed and sworn to before me
This 9th day of March, 2017


NOTARY PUBLIC

SHARON S. KHAN
Notary Public, State of New York
No. 01KH6159683
Qualified in Kings County
Commission Expires January 22, 2019

NOTICE OF ENTRY

PLEASE take notice that the within is a (*certified*) true copy of a duly entered in the office of the clerk of the within named court on

Dated,

Yours, etc.

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address
16 COURT ST.
BROOKLYN, N.Y. 11241

To

Attorney(s) for

NOTICE OF SETTLEMENT

PLEASE take notice that an order

of which the within is a true copy will be presented for settlement to the Hon.

one of the judges of the within named Court, at

on

at

M.

Dated,

Yours, etc.

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address
16 COURT ST.
BROOKLYN, N.Y. 11241

To

Attorney(s) for

Index No.

Year

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

KITO PENN,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
~~FERMAN, POLICE OFFICER HUDSON, POLICE~~
OFFICER CANADY and JOHN DOES – Police Officers
as yet unidentified,

Defendants.

MEMORANDUM VERIFIED COMPLAINT

Print name beneath

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address, Telephone
16 COURT ST.
BROOKLYN, N.Y. 11241
(718) 522-1020

To

Attorney(s) for

Service of a copy of the within is hereby admitted.
Dated

.....

Attorney(s) for

1500 – Blumberg Excelsior Inc., NYC 10013